

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Harry Feigen	Team: Squad #13	CCRB Case #: 201507239	☒ Force	☒ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Friday, 07/03/2015 12:30 AM	Location of Incident: Ralph Avenue and Marion Street	18 Mo. SOL 1/3/2017	Precinct: 81		
Date/Time CV Reported Tue, 08/18/2015 7:09 PM	CV Reported At: IAB	How CV Reported: Phone	Date/Time Received at CCRB Wed, 08/26/2015 11:36 AM		

Complainant/Victim	Type	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. LT Roman Israilov	00000	932816	PBBN
2. An officer			081 PCT
3. POM Joseph Solomito	14389	952258	081 PCT
4. POM George Kurian	10678	948065	081 PCT
5. POM Andrew Yurkiw	13610	952364	081 PCT
6. Officers			081 PCT

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. POM Sean McDonnell	25832	955162	PBBN
2. SGT Tommy Keung	05286	942001	081 PCT
3. POM Joel Rodriguez	16835	955399	PBBN

Officer(s)	Allegation	Investigator Recommendation
A . POM Joseph Solomito	Abuse of Authority: At the intersection of Ralph Avenue and Marion Street in Brooklyn, PO Joseph Solomito stopped the vehicle in which § 87(2)(b) was an occupant.	A . Exonerated
B . POM George Kurian	Abuse of Authority: At the intersection of Ralph Avenue and Marion Street in Brooklyn, PO George Kurian stopped the car in which § 87(2)(b) was an occupant.	B . Exonerated
C . POM Andrew Yurkiw	Abuse of Authority: At the intersection of Ralph Avenue and Marion Street in Brooklyn, PO Andrew Yurkiw stopped the car in which § 87(2)(b) was an occupant.	C . Exonerated
D . Officers	Force: At the intersection of Ralph Avenue and Marion Street in Brooklyn, officers pointed their guns at § 87(2)(b) and § 87(2)(b)	D . Exonerated
E . An officer	Discourtesy: At the intersection of Ralph Avenue and Marion Street in Brooklyn, officers spoke rudely to § 87(2)(b) and § 87(2)(b)	E . Officer(s) Unidentified
F . An officer	Abuse of Authority: At the intersection of Ralph Avenue and Marion Street in Brooklyn, officers threatened § 87(2)(b) and § 87(2)(b) with the use of force.	F . Officer(s) Unidentified

Officer(s)	Allegation	Investigator Recommendation
G . LT Roman Israilov	Abuse of Authority: At the intersection of Ralph Avenue and Marion Street in Brooklyn, Lt. Roman Israilov authorized the frisks of § 87(2)(b), and § 87(2)(b)	G . Exonerated
H . LT Roman Israilov	Abuse of Authority: At the intersection of Ralph Avenue and Marion Street in Brooklyn, Lt. Roman Israilov authorized the searches of § 87(2)(b), and § 87(2)(b)	H . Substantiated
I . LT Roman Israilov	Abuse of Authority: At the intersection of Ralph Avenue and Marion Street in Brooklyn, Lt. Roman Israilov authorized the search of § 87(2)(b) vehicle.	I . Exonerated
J . LT Roman Israilov	Abuse of Authority: At the 81st Precinct stationhouse, Lt. Roman Israilov authorized the search of § 87(2)(b) vehicle.	J . Substantiated
K . LT Roman Israilov	Abuse of Authority: Lt. Roman Israilov damaged § 87(2)(b) property.	K . Unsubstantiated
§ 87(4-b) § 87(2)(g)		

Case Summary

On August 18, 2015, § 87(2)(b) filed this complaint with IAB by phone on behalf of himself, § 87(2)(b) and § 87(2)(b).

On July 3, 2015, at approximately 12:30 a.m., § 87(2)(b) and his two friends, § 87(2)(b) and § 87(2)(b) were leaving a food vendor located near the intersection of Ralph Avenue and Marion Street in Brooklyn. As they walked towards § 87(2)(b) vehicle, which was parked on the street, § 87(2)(b) heard several loud noises that he believed to be fireworks. As the three men started to drive away in § 87(2)(b) vehicle, they were pulled over by PO Joseph Solomito, PO George Kurian, and PO Andrew Yurkiw from the 81st Precinct (**Allegations A, B, and C**). The three officers approached § 87(2)(b) vehicle with their guns pointed at them, and stated, “Put your hands up. Don’t fucking move or I’ll shoot you” (**Allegations D, E, and F**). At about this time, Lt. Roman Israilov and PO Sean McDonnell from Patrol Borough Brooklyn North also arrived on the scene.

§ 87(2)(b) and § 87(2)(b) exited their vehicle, and were all frisked (**Allegation G**). Immediately after being frisked, all three men were handcuffed, and officers searched the contents of their pockets (**Allegation H**). § 87(2)(b) and § 87(2)(b) were brought to a police van while PO Solomito, PO Kurian, and PO McDonnell searched § 87(2)(b) vehicle, which had a bullet hole in the driver door, a spent round on the floor, and an open bottle of Hennessy inside (**Allegation I**). The three men were transported to the 81st Precinct stationhouse, where they were questioned about a shots-fired investigation, and § 87(2)(b) vehicle was searched further by PO Solomito (**Allegation J**). The three men were eventually released only with summonses for § 87(2)(b) in § 87(2)(b) vehicle. A complaint report was prepared for them, in which they allege hearing shots fired, and later noticing the bullet hole and spent round in § 87(2)(b) vehicle. When § 87(2)(b) vehicle was returned to him, the back seat was ripped open, and wires were hanging from underneath the steering wheel (**Allegation K**).

Mediation, Civil, and Criminal Histories

- This case was not suitable for mediation, due to the allegation of property damage.
- A notice of claim request was returned with negative results by the Comptroller’s office on December 2, 2015.
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]
[REDACTED]
[REDACTED]
[REDACTED]

- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]

Civilian and Officer CCRB Histories

- This is the first CCRB complaint for [§ 87(2)(b)] and [§ 87(2)(b)]
- Lt. Israilov has been a member of service for twelve years. These are the first CCRB allegations made against him.
- PO Solomito has been a member of service for three years. There are no prior substantiated allegations on his record, [§ 87(2)(g)]
[REDACTED]
- PO Yurkiw has been a member of service three years. There are no prior substantiated allegations on his record, [§ 87(2)(g)]
- PO Kurian has been a member of service for six years. There are no prior substantiated allegations on his record, [§ 87(2)(f)]

Explanation For Investigation Exceeding 90 Days

[§ 87(2)(g)]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]

Findings and Recommendations

Attempts to Contact Civilians

Neither [§ 87(2)(b)] nor [§ 87(2)(b)] could provide any contact information for [§ 87(2)(b)]. An address for [§ 87(2)(b)] was listed on the complaint report for the incident, and two letters were sent to it. Searches of CTS, BADS, and Lexis Nexis yielded two potential phone numbers for [§ 87(2)(b)]. Each was called five times, and voice messages were left in each instance, but [§ 87(2)(b)] did not ever contact the CCRB.

Explanation of Subject Officer Identification

§ 87(2)(g)

§ 87(2)(b) alleged that he was stopped by two police vehicles, and that two officers approached his car from each one (01 Board Review). § 87(2)(b) also stated that there were two police vehicles initially, but that there were five officers who approached § 87(2)(b) car (02 Board Review). All of the officers except for Lt. Israilov, however, stated that the conditions officers were the ones who made the initial stop, and that PO McDonnell and Lt. Israilov arrived at § 87(2)(b) vehicle approximately one to two minutes into the incident. § 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

Allegation A: Abuse of Authority – At the intersection of Ralph Avenue and Marion Street in Brooklyn, PO Joseph Solomito stopped the vehicle in which § 87(2)(b) was an occupant.

Allegation B: Abuse of Authority – At the intersection of Ralph Avenue and Marion Street in Brooklyn, PO George Kurian stopped the vehicle in which § 87(2)(b) was an occupant.

Allegation C: Abuse of Authority – At the intersection of Ralph Avenue and Marion Street in Brooklyn, PO Andrew Yurkiw stopped the vehicle in which § 87(2)(b) was an occupant.

It is undisputed that PO Solomito, PO Kurian, and PO Yurkiw stopped § 87(2)(b) vehicle immediately after he started to drive away from where it was parked at the intersection of Ralph Avenue and Marion Street. It is also undisputed that immediately prior to this vehicle stop, multiple gun shots had been fired in the vicinity of § 87(2)(b) vehicle.

§ 87(2)(g)
§ 87(2)(b) PO Solomito, PO Yurkiw, and PO Kurian pulled out onto Ralph Avenue, and were approached by a group of teenagers who pointed at § 87(2)(b) black vehicle, which was parked approximately one block north of their location (the direction the sound of gunshots had come from), and said, “The black car was shooting.” The officers observed the car in question as § 87(2)(b) and § 87(2)(b) were entering it, at which point they pulled up and stopped § 87(2)(b) as he was beginning to drive away.

§ 87(2)(g) § 87(2)(b) statement that he heard the gunshots as he approached his vehicle (although he claimed he believed they were fireworks at the time), and then was immediately stopped by the officers as he started to drive away. § 87(2)(b) and § 87(2)(b) also both stated that the officers made remarks to them during the incident about receiving a report of a black vehicle being involved in a shooting, which is consistent with the officers’ account about the group of teenagers who informed them of § 87(2)(b) potential involvement with the shots fired.

In order to stop a vehicle for a non-traffic violation, an officer must have reasonable suspicion that the occupants of the vehicle have committed a crime. An anonymous individual claiming to have witnessed a crime who then points out to an officer the person who allegedly committed the crime grants the officer reasonable suspicion to stop that person. People v. Letriz, 103 N.Y. App. Div. 3d 446 (2013) (03 Board Review).

§ 87(2)(g)
§ 87(2)(g)
§ 87(2)(g)

§ 87(2)(g)

It is therefore recommended that **Allegations A, B, and C** be closed as **exonerated**.

Allegation D: Force – At the intersection of Ralph Avenue and Marion Street in Brooklyn, officers pointed their guns at § 87(2)(b) and § 87(2)(b)

It is undisputed that immediately after stopping § 87(2)(b) vehicle, multiple officers approached it with their guns pointed at the occupants of the vehicle.

A police officer is allowed to point his gun at an individual if the circumstances surrounding the officer's interaction with that person reasonably causes the officer to fear for his safety. Police Department v. Gliner, OATH index no. 955/400 (2000) (04 Board Review).

§ 87(2)(g)

it is recommended that **Allegation D** be closed as **exonerated**.

Allegation E: Discourtesy – At the intersection of Ralph Avenue and Marion Street in Brooklyn, an officer spoke discourteously to § 87(2)(b) and § 87(2)(b)

Allegation F: Abuse of Authority – At the intersection of Ralph Avenue and Marion Street in Brooklyn, officers threatened § 87(2)(b) and § 87(2)(b) with the use of force.

§ 87(2)(g)

It is therefore recommended that **Allegations E and F** be closed as **officer unidentified**.

Allegation G: Abuse of Authority – At the intersection of Ralph Avenue and Marion Street in Brooklyn, Lt. Roman Israilov authorized the frisks of § 87(2)(b) and § 87(2)(b)

§ 87(2)(b) alleged that after he, § 87(2)(b) and § 87(2)(b) exited their vehicle, all three men were patted down on top of their clothing by multiple officers, and that they were all frisked multiple times throughout the incident, by different officers every time. § 87(2)(b) denied that he was frisked at any time at the incident location, and did not know whether § 87(2)(b)

§ 87(2)(b) or § 87(2)(b) were frisked. As discussed previously, § 87(2)(b) was unavailable to provide a statement to the CCRB.

PO Solomito admitted to frisking § 87(2)(b) and while initially stating that all three men were frisked, he later claimed to not recall whether the other two men were frisked (05 Board Review). PO Yurkiw stated that PO Solomito frisked all three males, and that he was the only officer to perform any frisks (06 Board Review). PO Kurian stated that all three men were frisked, and admitted to frisking one himself, but he could not recall who (07 Board Review). Lt. Israilov and PO McDonnell both believed that all three men were frisked, but could not say which officers did this (08 Board Review and 09 Board Review).

§ 87(2)(g)
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED].

The officers all stated that before § 87(2)(b) and § 87(2)(b) exited their vehicle, PO Solomito observed a bullet hole in the driver door of § 87(2)(b) vehicle, and a bullet on the floor by § 87(2)(b) feet. Upon seeing these two things, PO Solomito told the other officers that there was a round in the vehicle. § 87(2)(g)

[REDACTED]
[REDACTED] the presence of the round (which was eventually determined to be spent) was documented by a property voucher (10 Board Review) and in the complaint report PO McDonnell prepared for the three men (11 Board Review).

§ 87(2)(g)
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]

A police officer can frisk a person whom he reasonably suspects of having committed a serious and violent crime. People v. Mack, 26 N.Y.2d 311 (1970). (12 Board Review).

§ 87(2)(g)

It is therefore recommended that **Allegation G** be closed as **exonerated**.

Allegation I: Abuse of Authority – At the intersection of Ralph Avenue and Marion Street in Brooklyn, Lt. Roman Israilov authorized the search of § 87(2)(b) vehicle.

It is undisputed that none of the officers who frisked § 87(2)(b) or § 87(2)(b) felt any objects that they believed to be a weapon.

§ 87(2)(b) alleged that all of the officers on the scene took turns entering his car and searching through different areas of it throughout the incident. § 87(2)(b) alleged that two of the first officers who stopped the vehicle began searching the areas around the front and back seats immediately after § 87(2)(b) and § 87(2)(b) were removed from the car.

PO Solomito denied that the vehicle was searched on the scene. § 87(2)(g)

PO Kurian admitted to searching the backseat of the vehicle, and stated that PO Solomito searched the front seats at that time. PO McDonnell also admitted to searching the front passenger seat area and backseat area, and stated that another officer was searching inside of the vehicle, but that he could not recall who this was. PO Yurkiw stated that the vehicle may have been searched at the scene, but he denied seeing any officers actually do this. Lt. Israilov stated that he did not know if the vehicle was searched on the scene, but that it was possible that it was, as he was canvassing for ballistics for a portion of the incident.

§ 87(2)(g)

§ 87(2)(g)

Absent probable cause, it is unlawful for a police officer to invade the interior of a stopped vehicle once the suspects have been removed and patted down, as any immediate threat to the officers' safety has consequently been eliminated. People v. Mundo, 99 N.Y.2d 55 (2002). (13 Board Review). A narrow exception to this rule exists where following a lawful stop, facts revealed during a proper inquiry or other information gathered during the course of the encounter lead to the conclusion that a weapon located within the vehicle presents an actual and specific danger to officers' safety sufficient to justify further intrusion, regardless of the suspect's inability to gain immediate access to that weapon. People v. Carvey, 89 N.Y.2d 707 (1997). (14 Board Review).

§ 87(2)(g) [REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED] It is therefore recommended that **Allegation I** be closed as **exonerated**.

Allegation H: Abuse of Authority – At the intersection of Ralph Avenue and Marion Street in Brooklyn, Lt. Roman Israilov authorized the searches of § 87(2)(b) [REDACTED]

and § 87(2)(b) [REDACTED]

§ 87(2)(b) [REDACTED] alleged that immediately after he, § 87(2)(b) [REDACTED] and § 87(2)(b) [REDACTED] were frisked and handcuffed, their pockets were searched. He maintained that they were all searched multiple times by various different officers who were present on the scene. § 87(2)(b) [REDACTED] denied that his pockets were searched during the incident, and stated that he did not see any officers search the pockets of § 87(2)(b) [REDACTED] or § 87(2)(b) [REDACTED] § 87(2)(g) [REDACTED]
[REDACTED]
[REDACTED].

§ 87(2)(g) [REDACTED]
[REDACTED] PO Solomito denied the search, but he also denied that he or any other officer searched § 87(2)(b) [REDACTED] vehicle on the scene.
§ 87(2)(g) [REDACTED]
[REDACTED]
[REDACTED]

Additionally, PO Solomito, PO Yurkiw, and PO Kurian all stated that the three men were under arrest at the time that they were placed in a police van to be transported to the 81st Precinct

stationhouse. § 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

Furthermore, Lt. Israilov and PO Kurian both stated they did not recall if the men's pockets were searched, but failed to deny the allegation outright. PO McDonnell and PO Yurkiw both denied searching anyone's pockets or seeing any other officer do so, but they also both claimed to be canvassing for ballistics at the time the searches would have happened. § 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

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§ 87(2)(g)

§ 87(2)(g)

PO Solomito, PO Kurian, and PO Yurkiw stated that they did not believe the men were under arrest until they were being placed in the prisoner van to be transported to the stationhouse, which was after the searches had already occurred. § 87(2)(g)

§ 87(2)(g), Lt. Israilov stated that the three men were transported to the 81st Precinct stationhouse to detain them for further questioning about the shots fired investigation. The other officers interviewed also stated that this was the reason for transporting the men to the stationhouse, § 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(b) claimed that he asked Lt. Israilov multiple times during the incident whether they were under arrest, to which Lt. Israilov allegedly replied that they were under investigation. While the entries for § 87(2)(b) and § 87(2)(b) in the 81st Precinct command log lists them as all being under arrest for disorderly conduct (15 Board Review), none of the officers interviewed gave this as a reason for their transport to the stationhouse (and in fact multiple officers described § 87(2)(b) demeanor as calm during the incident). § 87(2)(g)

In order to search an individual, an officer must have felt an object that he believed to be a weapon during the course of a frisk. People v. Robinson, 125 A.D. 2d 259 (1st Dept. 1986) (16 Board Review). Otherwise, he must have probable cause to place the person under arrest, and the intent to do so, in which case he can search the suspect incident to said arrest. People v. Reid, 24 N.Y.3d 615 (2014). (17 Board Review).

§ 87(2)(g)

It is therefore recommended that **Allegation H** be closed as **substantiated**.

Allegation J: Abuse of Authority – At the 81st Precinct stationhouse, Lt. Roman Israilov authorized the search of § 87(2)(b) vehicle.

PO Solomito stated that he searched § 87(2)(b) vehicle with another officer at the 81st Precinct stationhouse. Lt. Israilov acknowledged that the vehicle was searched at the stationhouse, and as discussed in the officer identification section, he had the ultimate responsibility for this search.

PO Solomito claimed that this vehicle search was conducted for weapons. § 87(2)(g)

In order to search a vehicle, a police officer must have an arrest, probable cause to believe the suspect's vehicle contains evidence or contraband, and a nexus between the arrest and the probable cause to search the vehicle. People v Galak, 81 N.Y.2d 463 (1993) (18 Board Review). An officer cannot search a vehicle for safety concerns if the occupants have been removed and detained, barring exceptional circumstances. People v. Mundo, 99 N.Y. at 55. People v. Carvey, 89 N.Y. at 707.

§ 87(2)(g)

it is recommended that **Allegation J** be closed as **substantiated**.

Allegation K: Abuse of Authority – Lt. Roman Israilov damaged property.

§ 87(2)(g)

It is undisputed that § 87(2)(b) vehicle subsequently had issues with its power steering, radio, air conditioning, and push start ignition. § 87(2)(g)

(g)

§ 87(2)(b) stated that when he was released from the 81st Precinct stationhouse and his vehicle was returned to him, the seats in the rear of the vehicle were torn open. He also stated that the area underneath the steering wheel was ripped open, with loose wires hanging from it, and that his vehicle immediately began having the aforementioned performance issues after this incident. § 87(2)(b) provided the CCRB with an invoice from Bay Ridge Nissan, Inc. for the service he had done on his vehicle to corroborate this (19 Board Review). The diagnostic fee was \$468.15 dollars, and he had this service done almost two months after the incident, on August 31, 2015.

§ 87(2)(b) also stated that the day after the incident, he saw § 87(2)(b) vehicle and observed its backseat to be torn open. He also stated that the air conditioning and radio did not function properly, as it had had before this incident.

All of the officers denied observing any damage to § 87(2)(b) vehicle consistent with what § 87(2)(b) alleged, and they all denied doing anything to cause any damage to § 87(2)(b) vehicle.

It is therefore recommended that **Allegation K** be closed as **unsubstantiated**.

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED] [REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

Investigator: _____
Signature Print Date

Attorney: _____
 Title/Signature Print Date